CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
FIRST BUDGET HEARING
September 8, 2010
5:01 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 5:01 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Assistant City Attorney Michael Rodriguez, and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. FIRST READING ORDINANCES/PUBLIC HEARING:

A. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING A FINAL MILLAGE RATE PURSUANT TO SECTION 200.965 FLORIDA STATUTES, FOR FISCAL YEAR 2010-2011, COMMENCING OCTOBER 1, 2010 THROUGH SEPTEMBER 30, 2011; SETTING PUBLIC HEARING DATES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR REPEAL OF ALL PRIOR ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was read by title by Attorney Rodriguez.

Attorney Rodriguez continued by reading Section 2 into the record: The City Commission of the City of Opa-locka hereby adopts and establishes the millage rate of the City of Opa-locka for Fiscal Year 2010-2011, commencing October 1, 2010, through September 30, 2011, at 8.8000 mills, which is $8.8000 per $1,000.00 of assessed property

value within the City of Opa-locka. This represents a 3.35% decrease over the rollback rate of 9.1052 mills.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

B. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND ADOPTING THE CITY'S GENERAL FUND BUDGET FOR THE FISCAL YEAR 2010-2011, COMMENCING OCTOBER 1, 2010 THROUGH SEPTEMBER 30, 2011; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR THE DEPOSIT OF INTEREST EARNED TO THE GENERAL FUND; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND PROVIDING FOR AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was read by title by Attorney Rodriguez.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Commissioner Johnson directed that the amendments previously discussed in the public meeting and by this Commission be noted in the changes prior to the next reading so that everything is detailed and clear. This information should be provided to the Commission prior to the second budget hearing.

In addition to that, Mayor Kelley reminded the City Manager to make sure the previous notation relating to sidewalks and infrastructure is emphasized in the budget because the numbers in the budget will not change but how they are incorporated will in terms of the department and/or area.

He directed the City Manager to provide the information requested not later than Monday, September 13, 2010.

He further commended the City Manager and staff for producing a budget that does not lay off any employees and keeps the service level as is in this tight economic challenge.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

C. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND ADOPTING THE CITY'S PROPRIETARY AND SPCIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR 2010-2011, COMMENCING OCTOBER 1, 2010 THROUGH SEPTEMBER 30, 2011; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was read by title by Attorney Rodriguez.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Commissioner Johnson stated to the City Manager that she was not in support ratifying funds already spent. She expressed her concern relating to the oversight during the year where the city did not note all of the budget line items and that cannot be accepted. She said she felt uncomfortable when the Commission is presented with items without the line item number. In addition to that, when the City Manager spend funds and then comes back for the Commission to ratify the expenditure to her the City Manager is taking advantage that they are going to approve it.

She made it clear to the City Manager that being aware of the money in the budget, if it is not essential spending then the city should not be doing it. It is imperative that the city must find ways to save money and cut down on spending.

She further stated that the city must position itself to look at the monies coming down for road improvements.

In the upcoming year, Vice Mayor Taylor requested that the Commission is provided with a detailed report on grants.

As a reminder, in discussing the proprietary and special revenue budget Mayor Kelley requested that the City Manager provide the break down of monies used for department staff salaries no later than Monday, September 13, 2010. Although the bottom line will not change, the percentage in how the money is allocated does.

Commissioner Johnson stated that during the year if the percentage is changed then it should come back before the City Commission even though the bottom number will not change.

Mayor Kelley said that his purpose for bringing this item up is so the Commission can know what to project in the beginning just in case the City Manager needs to make adjustments in the future due to additional funding, etc.

Commissioner Johnson said she could not recall anyone in the past ever coming to the Commission for those types of changes; however, she noted in correspondence that there had been changes. In moving forward, she said she would hope the City Manager and staff know this is no longer acceptable and the Commission must be able to make that decision.

She made reference to a staff member indicating that a portion of their salary comes out of this fund but she also knows in looking at the adopted budget that there is a line item for that salary and it cannot be both ways. As it relates to the city's finances, she said she is not getting a good snapshot of what's going on.

Mayor Kelley stated that once the Commission is aware as to what those percentages are then the City Manager and staff would know automatically that they need to come back before them for any changes or adjustments.

Vice Mayor Taylor stated that she really never got a good understanding of how the percentage was allocated. She suggested that the Commission keep in mind that if there is an adjustment in the percentage then it will affect the bottom line.

Mayor Kelley stated that the Commission is really agreeing on the same thing and he is bringing this issue up because he wants the City Manager to provide the breakdown and the percentages. This will affect the bottom line but if the individual is doing more in one area then the other then one of the line items should have a higher amount in it. The City Manager will provide the percentages and anticipation based on last year so that the Commission can have a clear picture.

Commissioner Johnson asked about the personnel under the City Manager eligible to receive these funds.

Manager Patterson stated that other than the writers of the grants the city receives, there's a percentage of his time and the personnel director's time.

Commissioner Johnson asked, is the classification of those positions exempt?

Manager Patterson replied, all except the grant writer.

Commissioner Johnson stated that because of the current economy, those individuals in the exempt positions would have to do more work for either less of the same salary because the city is not in a position to justify and give based on percentages. The city is not in a position to give 5% to staff if they do something and if that's the case then they should start justifying the increase by providing personnel weekly activity reports which reflects what the individual is actually doing to get that money. In her observation, she said that 8 hours work for 8 hours pay is not being totally done and it is very frustrating when citizens see it happen in general but the city is talking about more money. The city should not take for granted that just because it is receiving additional money that staff should receive additional money.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

5. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 5:24 p.m.

MAYOR

ATTEST:

CITY CLERK